

**IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF PENNSYLVANIA**

	:	CIVIL ACTION
	:	
v.	:	NO.
	:	
	:	

JOINT REPORT OF RULE 26(f) MEETING

In accordance with Federal Rule of Civil Procedure 26(f), counsel for the parties conferred on _____ and submit the following report of their meeting for the Court's consideration:

Date and time of Rule 16 Conference: _____

Plaintiff's Counsel participating in the Rule 16 conference: _____

Defendant's Counsel participating in the Rule 16 conference: _____

Basis of Jurisdiction: _____

Jury trial _____ **Non-Jury Trial** _____ **Arbitration** _____

1. Discussion of Claims, Defenses, and Relevant Issues

You should assume that the Court has read the complaint and answer and is familiar with the claims. The Court does not, however, know the facts supporting those claims and defenses. Therefore, counsel shall concisely summarize the controlling facts that the parties contend support their claims and defenses. If counsel contends that one or more issues of fact or law will be dispositive, they should specifically identify such issues.

2. Informal Disclosures

Except in exceptional cases with a substantial quantity of documents, the parties are expected to have identified and **produced** documents falling within the definition of initial disclosures under Rule 26(a)(1) in advance of the Conference with sufficient time for opposing counsel to review them and be prepared to address them.

When did the parties comply with Rule 26(a)'s duty of self-executing disclosure? _____

3. Formal Discovery

The discovery deadline should normally be no more than 90 - 120 days from the date of the Rule 16 conference.

The parties anticipate discovery should be completed within ____ days.

If you contend the discovery period should exceed 120 days, please explain:

Have the parties discussed issues relating to claims of privilege or of protection as trial-preparation material, as required by Rule 26(f)(3)(D)? _____

Is electronic discovery needed: _____ **If so, have the parties reached an agreement on how to conduct electronic discovery?** _____. If the parties cannot reach an agreement, in most cases, the Court will enter an order incorporating default standards.

Have all necessary authorizations been signed and exchanged in advance of the Conference (e.g. HIPAA release, tax return authorization) _____ **yes** _____ **no**

Are there any discovery issues that should be addressed at the Rule 16 conference?

Does either party anticipate the use of experts? _____yes _____ no

If yes, describe the nature of the experts:

4. Insurance Coverage:

The parties shall provide full information about any potentially applicable insurance, regardless of any disclaimer or reservation of rights, including the limits of coverage, potential excess coverage, deductibles, self-insured retention (SIR), and whether any deductible or SIR includes payment of counsel fees and costs.

Is there a relevant insurance policy? _____yes _____ no

If yes, state the relevant policy limits on the policy or policies:

5. Dispositive Motions:

Are dispositive motions expected? _____yes _____ no _____ unsure

Are Daubert motions expected? _____yes _____ no _____ unsure

6. Settlement or Early Resolution

The parties should review Local Rule 53.3 before responding. Whenever possible, plaintiff or counter-claim plaintiffs should communicate a settlement demand before the Conference. Set

forth the parties' discussion about early resolution through ADR, motion or otherwise explain what steps were taken by counsel to advise the client of alternative dispute resolution options.

If this matter is scheduled as a jury trial, the parties should be prepared to disclose at the Conference the most recent demand and offer of settlement. This information should not be disclosed if a bench trial is expected.

Would a settlement conference be beneficial? _____

If so, when: _____ early _____ after discovery.

7. Other Matters

Please advise the Court if there are any other matters that will need to be addressed at the Conference.

Counsel acknowledge that they have fully discussed their joint responses to this disclosure and have jointly submitted this response to the best of their knowledge of their respective cases:

(Attorney Signature)

(Attorney Signature)